

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.

(Complainant)

vs.

Top Shipping Systems, Corp.

(Respondent)

COMPLAINANT’S PROPOSED FINDINGS OF FACT

FormuKleen, Inc. submits the following proposed findings of fact under Entry No. 5 and 46 C.F.R. Section 502.214. Each paragraph is intended to state one factual proposition.

1. THE PARTIES AND THE SUBJECT SHIPMENTS

1. FormuKleen, Inc. is the complainant in this proceeding. Entry No. 1, paragraph 1.
2. Top Shipping Systems, Corp. is the respondent in this proceeding. Entry No. 8 at 1.
3. TSS admits that it is licensed by the Federal Maritime Commission as an NVOCC and ocean freight forwarder. Entry No. 8, paragraph 2.
4. Container CHSU4047424 is one of the two shipments at issue. Entry No. 8 at 4-5.
5. Container BSIU8431017 is the other shipment at issue. Entry No. 8 at 5-6.
6. Each subject container moved from China to the United States by vessel. Entry No. 40 at 2-3; CX-0159 to CX-0168.

2. TSS'S ADMISSIONS IN ITS FILINGS

7. TSS admits that it performed customs brokerage, drayage, and warehousing services for the subject shipments. Entry No. 8 at 1, 4.
8. TSS admits that CHSU was pulled from the port and held at its trucking partner's yard until February 25, 2025. Entry No. 8 at 5.
9. TSS admits that CHSU was held because of alleged unpaid account balances. Entry No. 8 at 5.
10. TSS admits that it paid port-storage charges for BSIU. Entry No. 8 at 6.
11. TSS admits that it transferred BSIU to its warehouse. Entry No. 8 at 6.
12. TSS admits that it prescribed conditions for FormuKleen to retrieve the BSIU goods. Entry No. 8 at 6.
13. TSS admits that BSIU was redirected to its warehouse because of alleged nonpayment. Entry No. 8 at 3-4.

14. TSS admits that it exercised control over the post-port movement and release of both subject containers. Entry No. 31 at 4-6; Entry No. 32 at 1-7.
15. TSS admits that it withheld delivery to secure obligations related and unrelated to the subject shipments. Entry No. 31 at 4-5.
16. TSS does not dispute that release was contingent on payment of invoices for unrelated shipments. Entry No. 31 at 5.
17. TSS describes the post-arrival transportation and storage as arranged by TSS. Entry No. 31 at 6.
18. TSS admits that the trucker pulled CHSU pursuant to TSS's instructions. Entry No. 32 at 1-3.
19. TSS admits that BSIU was brought to TSS's warehouse. Entry No. 32 at 3.
20. TSS admits that BSIU was released only after further account payments. Entry No. 32 at 5-7.
21. TSS identifies itself as the coordinator of drayage or local cartage from the port. Entry No. 33, paragraph 1.
22. TSS asserted a lien over goods in its possession, custody, or control for charges under other invoices. Entry No. 33, paragraph 8.
23. TSS participated in approximately fifty-four FormuKleen shipments. Entry No. 86 at 2.
24. TSS describes its historical roles as including notify party, customs broker, drayage coordinator, warehouse provider, cargo-release agent, storage provider, and destination agent. Entry No. 86 at 2.
25. At the March 19, 2026 status conference, TSS stated that it was not denying that it is an NVOCC. CX-0116.

26. At the March 19, 2026 status conference, TSS admitted performing customs brokerage and drayage for the subject shipments. CX-0116.
27. At the June 4, 2026 status conference, TSS admitted that it facilitated trucking for the subject containers. CX-0119 to CX-0121.
28. At the June 4, 2026 status conference, TSS admitted that it had the containers pulled to another warehouse. CX-0119 to CX-0121.

3. TSS'S CONTROL OF PICKUP, DELIVERY, STORAGE, AND RELEASE

29. Eddy Del Monte was TSS's import coordinator assigned to FormuKleen. CX-0125.
30. Del Monte had authority to give truckers pickup authority. CX-0125.
31. Del Monte had authority to give truckers delivery instructions. CX-0125.
32. Del Monte had authority to identify or change a delivery destination. CX-0125.
33. TSS generated the delivery orders used for the subject containers. CX-0127.
34. Del Monte testified that TSS created the operative delivery instructions and told the truckers where to go. CX-0128 to CX-0129.
35. Del Monte testified that the trucker relied on TSS for accurate delivery information. CX-0129.
36. Del Monte testified that every delivery instruction was sent to the trucker by email. CX-0132.
37. Del Monte gave the pickup authority for BSIU. CX-0133 to CX-0134.
38. Del Monte sent the delivery order for BSIU. CX-0133 to CX-0134.
39. The trucker followed Del Monte's delivery instructions for BSIU. CX-0134.
40. TSS paid charges on FormuKleen's behalf and then invoiced FormuKleen. CX-0126.

41. Del Monte communicated with DHY, Dolphin Logistics, SeaBlue, and TSS's warehouse concerning the subject containers. CX-0135 to CX-0138.
42. Dolphin supplied TSS with arrival, charge, availability, and shipment information. CX-0136 to CX-0137.
43. TSS placed both subject containers on hold. CX-0139 to CX-0140.
44. TSS management made the decisions to place the subject containers on hold. CX-0139 to CX-0140.
45. TSS's corporate representative testified that TSS performed customs brokerage, local trucking, and warehousing for each subject shipment. CX-0147.
46. TSS's corporate representative testified that TSS filed the ISF, cleared the shipments, removed the containers from the port, placed them into storage, and ultimately delivered them. CX-0148.
47. TSS contacted DHY and Dolphin to obtain release information for local pickup. CX-0152.
48. TSS coordinated the local pickup after obtaining release information. CX-0152.
49. TSS directed where the trucker delivered CHSU. CX-0154 to CX-0155.
50. TSS directed where the trucker delivered BSIU. CX-0156 to CX-0157.
51. TSS provided delivery instructions or delivery orders to the truckers for both subject containers. CX-0154 to CX-0157.
52. CHSU was pulled from the port pursuant to TSS's instructions and held at TSS's trucking partner's yard pending resolution of the payment dispute. CX-0149, CX-0151; Entry No. 32 at 1-3.

- 53. TSS did not authorize removal of CHSU from the trucker's yard until the account issue was resolved. CX-0150.
- 54. TSS placed BSIU in its warehouse. CX-0153.
- 55. TSS inventoried the BSIU goods. CX-0153.
- 56. TSS restricted release of the BSIU goods pending payment. CX-0153.
- 57. Ricky Villena participated in the decision not to release cargo until the account dispute was resolved. CX-0142 to CX-0143, CX-0146 to CX-0147.

4. TSS'S CONTEMPORANEOUS DOCUMENTS

- 58. Before CHSU arrived, TSS management instructed that the FormuKleen account and arriving container were on hold. CX-0170.
- 59. TSS's internal instruction stated that orders would not be released until further payments were received. CX-0170.
- 60. TSS informed FormuKleen that BSIU had been directed to TSS's warehouse. CX-0165.
- 61. TSS informed FormuKleen that the BSIU goods would be released only when the account was current. CX-0165.
- 62. TSS subsequently revoked FormuKleen's credit and suspended its services. CX-0172 to CX-0173.
- 63. TSS subsequently stopped advancing duties for FormuKleen. CX-0172 to CX-0173.
- 64. TSS's invoice for CHSU was not due when TSS imposed the CHSU hold. CX-0183.
- 65. TSS released CHSU before TSS's invoice for that shipment became due. CX-0183; Entry No. 8 at 5.

66. TSS's invoice for BSIU was not due when TSS placed BSIU in its warehouse and conditioned release on the account. CX-0165, CX-0184.

5. THE PERFORMING CARRIERS' DOCUMENTS

67. TSS's CHSU delivery order identifies the pickup location and directs delivery to FormuKleen's designated destination. CX-0175.
68. Thunder Container Transport's document for CHSU identifies Top Shipping as consignee. CX-0176.
69. TSS's BSIU delivery order identifies the pickup location and directs the container movement. CX-0178.
70. SeaBlue's document for the port pickup of BSIU identifies Top Shipping as consignee. CX-0179.
71. Thunder's first subsequent document for BSIU identifies Top Shipping as consignor. CX-0180.
72. Thunder's second subsequent document for BSIU identifies Top Shipping as consignor. CX-0181.
73. The BSIU carrier documents place TSS first in the consignee position and later in the consignor position for the same container. CX-0179 to CX-0181.

6. PRE-ARRIVAL COORDINATION AND HOLDING OUT

74. Before CHSU arrived, TSS communicated with FormuKleen's supplier in China concerning ISF information, vessel status, telex release, availability, and delivery. CX-0159 to CX-0161.
75. Before BSIU was picked up, TSS monitored the freight release, vessel arrival, and last free day. CX-0163 to CX-0168.

76. TSS Tariff No. 022839-001 identifies TSS as an FMC-licensed NVOCC and calls TSS the carrier. CX-0186.
77. TSS's tariff offers service between the United States and foreign ports and points. CX-0186 to CX-0187.
78. TSS's tariff offers through intermodal service by motor and rail. CX-0187 to CX-0188.
79. TSS's tariff offers door service to a consignee's designated facility. CX-0188 to CX-0189.
80. TSS's tariff authorizes TSS to arrange inland transportation and select motor carriers. CX-0187 to CX-0189.
81. Rule 2 of TSS's tariff defines an NVOCC NRA as a written and binding arrangement to provide specific transportation service "from origin to destination on and after receipt of the cargo by the Carrier or its agent." CX-0186 to CX-0189; TSS Tariff No. 022839-001, Rule 2.
82. Rule 2 further states that the Carrier's or Carrier's agent's receipt of cargo for the shipment constitutes final acceptance of the NRA offer and binds the parties. CX-0186 to CX-0189; TSS Tariff No. 022839-001, Rule 2.
83. TSS's current website advertises freight forwarding across ocean and ground transportation. CX-0191.
84. TSS's current website advertises end-to-end service from pickup to final delivery. CX-0191.
85. TSS's current website advertises ocean transportation and coordination with global ports. CX-0192.
86. TSS's current website advertises port drayage, container movement, and delivery from ports to final destination. CX-0193.

7. THE DISCOVERY ORDERS AND THE MISSING EVIDENCE

- 87. Entry No. 63 ordered TSS to produce documents responsive to Requests for Production Nos. 4 and 7. Entry No. 63 at 10-13.
- 88. Entry No. 63 ordered TSS to answer Interrogatory No. 1. Entry No. 63 at 10-13.
- 89. Entry No. 90 ordered TSS to produce all third-party communications concerning the two subject containers. Entry No. 90 at 2-3.
- 90. The production contains delivery orders and carrier documents without the complete emails transmitting those documents. CX-0175 to CX-0181; Entry Nos. 80, 81.
- 91. Del Monte testified that delivery instructions were transmitted by email. CX-0132.
- 92. Villena testified that changes to shipment instructions and delivery orders were normally handled by email. CX-0144 to CX-0145.
- 93. The Presiding Officer observed that TSS's admitted trucking and redirection meant that at least some communications had to exist. CX-0120 to CX-0121.
- 94. TSS acknowledged communications with truckers and offered an additional targeted search for responsive material. CX-0122.

8. POST-COMPLAINT CONDUCT RELEVANT TO 46 U.S.C. § 41102(d)

- 95. FormuKleen filed this FMC proceeding on June 9, 2025. Complaint; Notice of Filing and Assignment.
- 96. The Commission served the Complaint on June 17, 2025. Notice of Filing and Assignment.
- 97. TSS filed its Verified Answer on July 8, 2025. Entry No. 8.
- 98. TSS admits that BSIU remained at its warehouse until June 25, 2025 and was released only after further account payments. Entry No. 8 at 6; Entry No. 32 at 3, 5-7.

99. Sworn declarations concerning the July 10, 2025 retrieval of remaining goods state that Ricky Villena asked whether FormuKleen's principal was "looking for trouble" and stated that the remaining goods were scheduled for destruction. Entry No. 10 at 1-2; Entry No. 12, Exs. A-B.

9. ACTUAL INJURY

100. CHSU was unavailable to FormuKleen until February 25, 2025. Entry No. 8 at 5.
101. BSIU remained unavailable to FormuKleen from its placement in TSS's warehouse until June 25, 2025. Entry No. 8 at 6; Entry No. 32 at 5-7.
102. FormuKleen paid a \$695.00 CBP penalty on June 25, 2025. CX-0306.
103. During the period BSIU remained unavailable, a customer responded to FormuKleen's request for another order by stating that he could no longer order and could only try to direct business to FormuKleen at his next job. CX-0307.
104. FormuKleen's damages evidence establishes \$57,734.17 in direct actual injury attributable to the challenged cargo holds. Complainant's Schedule of Actual Injury; CX-0183 to CX-0184; CX-0208 to CX-0273; CX-0295 to CX-0298; CX-0306.
105. FormuKleen's damages evidence establishes \$83,092.97 in lost profit attributable to the challenged cargo holds. Complainant's Schedule of Actual Injury; CX-0299.
106. FormuKleen's total claimed actual injury is \$140,827.14. Complainant's Schedule of Actual Injury; CX-0183 to CX-0184; CX-0208 to CX-0273; CX-0295 to CX-0299; CX-0306.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

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CERTIFICATE OF SERVICE

I certify that on August 25, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

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